OWNER/OCCUPIER

Wayleave Agreement

made the 18 day of MAY 2022

BETWEEN: Graham Vivian Evans and Louise Alison Evans of Gue-Charreau, Links Way, Bookham, Leatherhead KT23 4HQ the one part and **South Eastern Power Networks plc** whose registered office is Newington House, 237 Southwark Bridge Road, London, SE1 6NP ("the Company") of the other part

BACKGROUND
The Grantor is the freehold/leasehold owner of the Property and has agreed to grant rights to the Company in respect of the Works on the terms set out below

IT IS AGREED as follows:-

1. **DEFINITIONS**

"**the Company**" includes its Subsidiaries, Associated Companies, successors and assigns
"**the Grantor**" includes its tenants, licensees and employees
"**the Plan**" means the plan annexed hereto: **UKPN2464**
"**the Property**" means the land shown on the Plan and described by the Land Registry (or locally where the land is unregistered) as being **Gue-Charreau, Links Way, Bookham, Leatherhead KT23 4HQ**
"**the Works**" means the works shown on the Plan and described in the Schedule

2.- **THE RIGHTS**
THE Grantor hereby grants consent for the Company:-

(a) To install, maintain, inspect, alter, renew, remove and retain the Works and to enter the Property at all reasonable times (or at any time in the case of emergency) with or without vehicles plant or machinery for such purposes

(b) To fell or lop in a woodman like manner any tree or hedge on the Property which obstructs or interferes with the Works

3.- **THE COMPANY'S COVENANTS**
THE Company shall:-

(a) Not cause any unnecessary damage or injury to the Property and shall take all reasonable precautions to avoid obstruction or interference with the use of any road or footpath sewer drain or watercourse that may be crossed by the Works

(b) Make good to the reasonable satisfaction of the Grantor any damage caused by or arising out of the execution of the Works. If for any reason any such damage cannot be made good the Company shall compensate the Grantor in an amount which has previously been approved by the Company

(c) Give to the Grantor not less than five days' previous notice (except in cases of emergency when as long notice as practicable shall be given) of the intended exercise of any of the rights conferred by Clause 2 above

(d) Subject to Clause 5 (Termination) and on the completion of this Agreement; upon the Grantor selecting a period of 15 Years pay the Grantor a one-off payment of **£608.00**. Upon the Grantor selecting a period of 12 months and for the continuance of this Agreement pay to the Grantor in respect of the consent hereby given annual sums in accordance with current figures published from time to time by the Energy Networks Association (excluding payments in relation to underground cables which are not published by the ENA)

(e) At all times keep the Grantor indemnified against all losses, damages and expenses reasonably foreseeable at the date of this Agreement which he suffers or incurs by reason or on account of any breach of this Agreement including any negligent act or omission of the Company in connection with the execution or existence of the Works provided that this indemnity shall not extend to any such losses damages or expenses to the extent caused by the default of the Grantor

4.- **THE GRANTOR'S COVENANTS**
THE Grantor shall not:-

(a) Do or cause or permit to be done on the Property anything likely to cause damage or interference of any kind to the Works

(b) Make or cause or permit to be made any material alteration to the Property so as to interfere with or obstruct the access to the Works or so as to interfere with the support afforded to the Works by the surrounding soil without the prior written consent of the Company

5.- **TERMINATION**
This Agreement shall remain in force for a period of,

[*Option 1*] ☐ 15 years
[*Option 2*] ☑ 12 months

from the date hereof and thereafter until determined at the expiry of not less than twelve months' previous written notice given at any time by either party but without prejudice to the rights which the Company might exercise under the Electricity Act 1989

THE SCHEDULE

(a) THE placing of an overhead electric line consisting of two, three or four conductors together with any ancillary apparatus across the Property in the line indicated in the approximate position shown on the Plan

(b) THE erection of **1 Pole(s)** and **1 Stay(s)** appliances for the purpose of supporting the above mentioned electric line in the approximate positions indicated on the Plan

(c) THE placing of **1** underground cable(s) for transmitting electricity at a frequency of 50 hertz and at a pressure of **LV = 230/400** volts and low voltage telephone and signalling cables such cable(s) to be in the approximate position indicated on the Plan. Length of cable(s) approximately **5** metres.

~~(d) THE siting of a distribution substation upon the Property with appropriate fencing (where necessary) in the approximate position indicated on the Plan together with all-purpose access thereto.~~

~~(e) THE placing of an underground earthwire and pins in the approximate position shown on the Plan~~

THE parties hereto have set their hands the day and year first above written

SIGNED BY Graham Vivian Evans and Louise Alison Evans (Grantor's Signature) Graham Evans
Graham Evans (May 9, 2022 12:41 GMT+1)
(please also sign plan)

SIGNED BY
For and on behalf of **South Eastern Power Networks plc** (Signature) Beverley Jones
Beverley Jones (May 18, 2022 11:36 GMT+1)

Office Use Only

Asset Type	Asset No. (Add. Stays inc. Pole No.)	Asset ID	Land Type	Land Reg. No.	Grid Ref. (8 Fig.)
Pole&Stay	1 pole and 1 stay	140214	Garden	SY199689	TQ12445327
U/G Cable	1 cable	Unknown	Garden	SY199689	TQ12445327
Select			Select		
Select			Select		

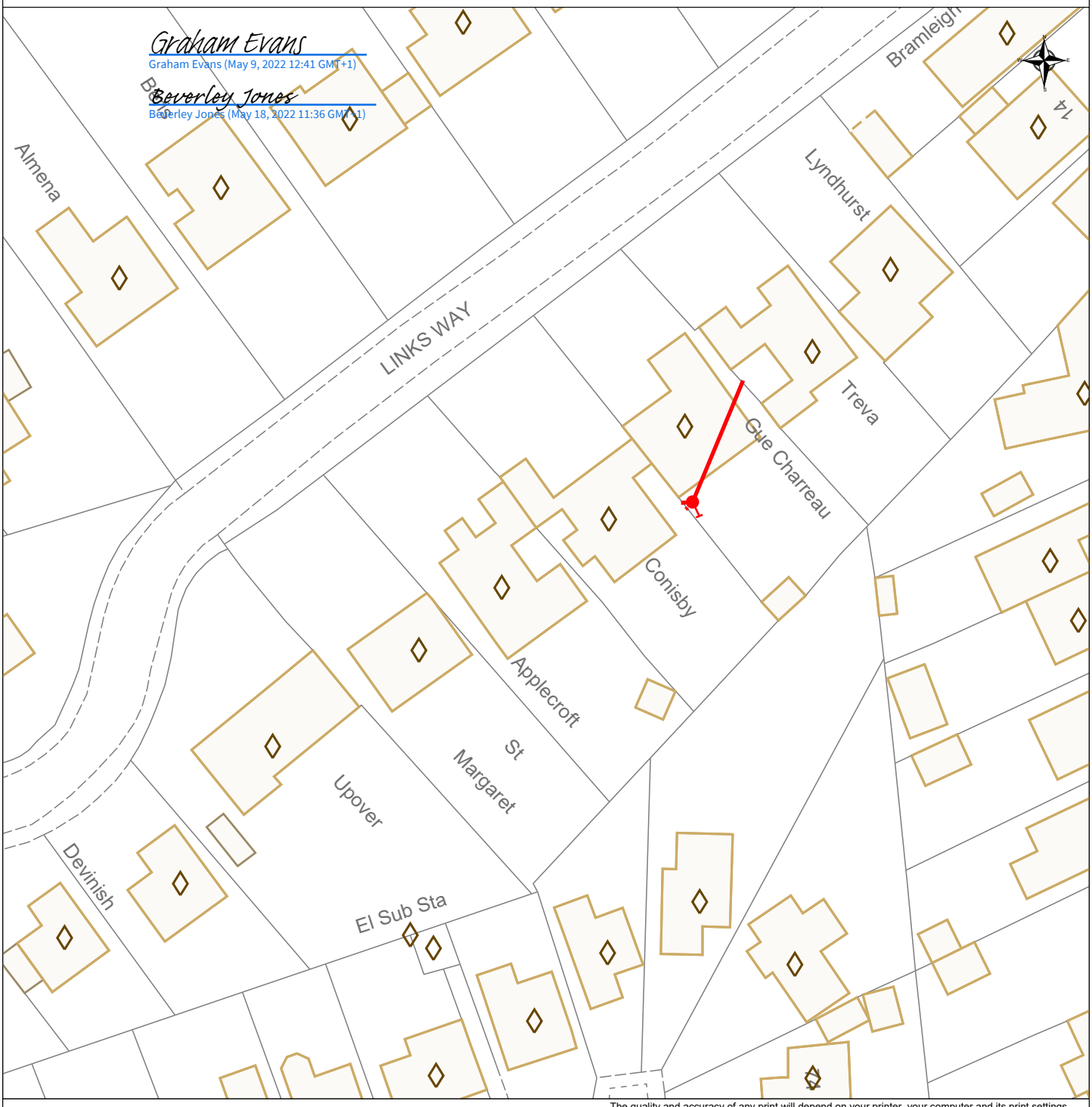
Underground Cable Note:
(A) If cable length is less than 250m then 8 Fig. Grid Ref. to be captured at middle point. .
(B) If cable length is more than 250m then 8 Fig Grid Ref. to be captured every 250m.

0-250m:		500m:		750m:		1000m:	
Back Dated Payment (Years)		6		**Make Payment**		Immediately	
This Document Replaces:							
Agreement No.: **Agreement No.:**							
Additional Comments							

Title: JOB NO: STANDARD PLOT

Graham Evans
Graham Evans (May 9, 2022 12:41 GMT+1)

Beverley Jones
Beverley Jones (May 18, 2022 11:36 GMT+1)



0m 5m 10m 15m 20m 25m 30m 35m 40m 45m 50m 55m 60m 65m

The quality and accuracy of any print will depend on your printer, your computer and its print settings. Measurements scaled from this plan may not match measurements between the same points on the ground.

Grid Ref: TQ 12428 53264

Scale: 1:645

(When Plotted at A4)

Plotted on: 22/02/2022

Plotted by: Beverley Jones

UK Power Networks

1. UK Power Networks does not warrant that the information provided to you is correct. You rely upon it at your own risk.
2. UK Power Networks does not exclude or limit its liability if it causes the death of any person or causes personal injury to a person where such death or personal injury is caused by its negligence.
3. Subject to paragraph 2 UK Power Networks has no liability to you in contract, in tort (including negligence), for breach of statutory duty or otherwise for any loss, damage, cost, claims, demands, or expenses that you or any third party may suffer or incur as a result of using the information provided whether for physical damage to property or for any economic loss (including without limitation loss of profit, loss of opportunity, loss of savings, loss of goodwill, loss of business, loss of use) or any special or consequential loss or damage whatsoever.
4. This plan has been provided to you on the basis of the terms of use set out in the covering letter that accompanies this plan. If you do not accept and/or do not understand the terms of use set out in the covering letter you must not use the plan and you must return it to the sender of the letter.
5. You are responsible for the security of the information provided to you. It must not be given, sold or made available upon payment of a fee to a third party.

Gue-Charreau
Links Way
Bookham
Leatherhead
KT23 4HQ

UKPN2464

LV Overhead Lines, Poles and Stays

LV Underground Cables

Please Note: Line and cable locations are approximate.

Reproduced by permission of Ordnance Survey on behalf of HMSO. (c) Crown copyright and database right 2022. All rights reserved. Ordnance Survey Licence number 100019450. Data has been added to the Ordnance Survey base map; all proprietary rights in such additional data are and shall remain the exclusive property of (c) South Eastern Power Networks plc or London Power Networks plc each being a distribution licensee under section 6(1)(c) of the Electricity Act 1989 for the relevant distribution services area as that term is defined in such licensee's distribution licence. All rights in such data reserved.

SY199689/EVANS (UKPN2464)

Final Audit Report 2022-05-18

Created:	2022-05-04
By:	Mia Byford (mia.byford@sta-surveyors.co.uk)
Status:	Signed
Transaction ID:	CBJCHBCAABAAsIu1IrZUvzhbjtltSEGyyw6YzqIJ-62l

"SY199689/EVANS (UKPN2464)" History

Document created by Mia Byford (mia.byford@sta-surveyors.co.uk)
2022-05-04 - 11:20:17 AM GMT

Document emailed to Graham Evans (evans157700@icloud.com) for signature
2022-05-04 - 11:22:13 AM GMT

Email viewed by Graham Evans (evans157700@icloud.com)
2022-05-04 - 11:26:32 AM GMT

Document e-signed by Graham Evans (evans157700@icloud.com)
Signature Date: 2022-05-09 - 11:41:12 AM GMT - Time Source: server

Document emailed to mbxwayleaveaccounts100@ukpowernetworks.co.uk for signature
2022-05-09 - 11:41:14 AM GMT

Email viewed by mbxwayleaveaccounts100@ukpowernetworks.co.uk
2022-05-18 - 10:25:58 AM GMT- IP address: 90.242.130.115

Document signing delegated to Beverley Jones (Beverley.Jones@ukpowernetworks.co.uk) by mbxwayleaveaccounts100@ukpowernetworks.co.uk
2022-05-18 - 10:26:05 AM GMT- IP address: 90.242.130.115

Document e-signed by Beverley Jones (Beverley.Jones@ukpowernetworks.co.uk)
Signature Date: 2022-05-18 - 10:36:19 AM GMT - Time Source: server- IP address: 90.242.130.115

Agreement completed.
2022-05-18 - 10:36:19 AM GMT